

LAW AND MOTION TENTATIVE RULINGS

DATE: JUNE 25, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 26CV01554

OSTENDORF v. COUNTY OF SANTA CRUZ

TRIAL DE NOVO

The parties are ordered to appear. The Court will not be taking evidence on June 25, 2026. The Court will instead set a briefing schedule and a new hearing date.

No. 25CV00512

NATHE et al. v. SANTA CRUZIDENCE OPCO, LLC et al.

PLAINTIFFS’ MOTION TO COMPEL RESPONSES BY DEFENDANT SANTA CRUZIDENCE OPCO, LLC TO SPECIAL INTERROGATORIES, SET TWO

The motion is granted. Defendant Santa Cruzidence Opco, LLC dba Santa Cruz Post Acute shall serve verified code compliant responses to special interrogatories, set two, nos. 96-100, no later than July 24, 2026.

The action relates to care decedent Elena C. Ferrer received at an acute rehabilitation facility prior to her death in December 2023. Plaintiffs’ complaint states causes of action for elder neglect, violation of Health & Safety Code section 1430, negligence, fraud, and wrongful death. Plaintiffs’ motion seeks further responses to special interrogatories nos. 96-100. Generally, these interrogatories seek the names and contact information of the responsible parties to other patients on the same floor, unit, and/or department as decedent for a short time period (11 days in November 2023) prior to her death (no. 96), and responsible parties who registered

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complaints in two years surrounding decedent's stay (nos. 97-99) or who had similar injuries (no. 100). Plaintiffs seek this information since they believe family members or representatives of other patients who were in the facility at the time of decedent's care have information directly relevant to their claims.

Defendant filed an opposition only as to special interrogatory no. 96, arguing that the request is not reasonably calculated to lead to relevant evidence and disclosure of information would violate the privacy rights of third parties.

The right to privacy is not absolute and even private information can be disclosed in some circumstances. The court must carefully balance the right of privacy against the need of discovery. (*Britt v. Superior Court* (1978) 20 Cal.3d 844, 855-856.) How compelling the discovery need must be will depend on the importance of the privacy interest involved. (*Davies v. Superior Court* (1984) 1412, 1432.) Personal information can be ordered disclosed only if the information is directly relevant and essential to a fair resolution of the action. (*Alch v. Superior Court* (2008) 165 Cal.App.4th 1412, 1431-1432.)

Here, the names and contact information of potential witnesses does not contemplate nor require the disclosure of medical information merely because a family member was a patient at an acute care facility. The requests do not seek medical information; instead, they seek the identity of witnesses. (See *Eisenhower Medical Center v. Superior Court* (2014) 226 Cal.App.4th 430, 434-435 [identifying information implicates medical privacy concerns only when disclosure reveals information concerning a patient's medical condition or treatment].) To the extent that the patients or their responsible parties witnessed decedent's treatment or any alleged staffing issues, the evidence is directly relevant. The privacy invasion is slight, particularly as to the responsible parties, and outweighed by the need for discovery. Based on the foregoing, the motion is granted.

No. 25CV01078

LYNTTON et al. v. MORALES et al.

**(UNOPPOSED) PLAINTIFF'S MOTION TO QUASH SUBPOENAS FOR
MEDICAL RECORDS**

The unopposed motion is granted. The subpoena to Tesla Insurance Services, Inc. is quashed and the Court imposes \$1,000.00 in monetary sanctions against defendant Angel Abraham Morales.

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I. BACKGROUND

Plaintiffs Christian Lyntton and Saide Maydahl sued defendants Angel Abraham Morales and Gerardo Morales for damages related to an auto collision on April 16, 2023.

Plaintiff seeks a court order to quash or modify one subpoena issued by defendant for records relating to plaintiff's medical care and history directed to Tesla Insurance Services, Inc. Plaintiff takes issue with the subpoena's overly broad scope, arguing it seeks records protected by plaintiff's right to privacy and goes beyond the parties' agreements related to production of medical records.

Despite proper service, no opposition was filed. Defendant's failure to oppose this motion can be construed as a concession to its merits. (*D.I. Chadbourne, Inc. v. Superior Court* (1964) 60 Cal.2d 723, 728, fn. 4 [where nonmoving party fails to oppose a ground for a motion "it is assumed that [nonmoving party] concedes" that ground].)

II. DISCUSSION

Pursuant to Code of Civil Procedure section 2017.010 unless otherwise limited by a court order, any party may obtain discovery regarding any matter not privileged that is relevant to the subject matter involved if the matter is admissible or is reasonably calculated to lead to the discovery of admissible evidence. "The 'relevancy to the subject matter' and 'reasonably calculated to lead to discovery of admissible evidence' standards are applied *liberally*. Any doubt is generally resolved in favor of *permitting* discovery, particularly where the precise issues in the care are not yet clearly established. [Citations.]" (Weil & Brown *Civil Proc. Before Trial* (TRG 2025) § 8:71.)

The right to privacy is not absolute and in each case the court must balance the right to privacy against the need for discovery. Defendant is entitled to records related to plaintiff's claims for bodily injury and the parties previously agreed in this action to only seek records related to plaintiff Christian Lyntton's head, back, neck and related symptoms. (Gauthier Declaration, ¶ 2.) This subpoena exceeds that agreement and following meet and confer, defendant refused to abide by the agreement. The Court therefore imposes monetary sanctions against defendant Angel Abraham Morales in the amount of \$1,000.00 pursuant to Code of Civil Procedure section 2023.030, payable no later than July 24, 2026.

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No. 25CV00829

TD BANK, N.A. v. McDONALD

**(UNOPPOSED) PLAINTIFF TD BANK, N.A.'S MOTION TO DEEM ITS
REQUESTS FOR ADMISSION ADMITTED AND FOR MONETARY
SANCTIONS**

The unopposed motion is granted. The Court deems admitted all matters specified in the requests for admission, set one. (Code Civ. Proc., § 2033.280, subd. (b).) This will be the order of the Court unless defendant serves, before the hearing on the motion, a proposed response to the requests for admissions that is in substantial compliance with Code of Civil Procedure section 2033.220.

“If a party to whom requests for admission have been directed fails to serve a timely response, the requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction pursuant to Section 2033.030 of the Code of Civil Procedure.” (Code Civ. Proc., § 2033.280, subd. (b).) Monetary sanctions are mandatory if requested. (Code Civ. Proc., § 2033.280, subd. (c).)

Plaintiff TD Bank, N.A. demonstrated it served a set of requests for admission on defendant Raymondo McDonald Jr. on January 30, 2026. No responses have been served to date. (Chen Declaration, ¶¶ 2-4, Exhibit 1.) Defendant also failed to file any opposition to this motion, despite a record of proper service.

Sanctions are imposed against defendant in the amount of \$500.00, payable no later than July 31, 2026.